September 2, 2025

Cari Fais, Acting Director
New Jersey Division of Consumer Affairs
124 Halsey Street
PO Box 45027
Newark, NJ 07101

RE: Public Comment on New Jersey Proposed Regulations N.J.A.C. 13:45L

Dear Acting Director Fais:

On behalf of the advertising industry, we provide this comment in response to the New Jersey Office of the Attorney General Division of Consumer Affairs' ("Division") proposed regulations in New Jersey Administrative Code Chapter 13:45L, implementing the New Jersey Data Privacy Act ("NJDPA").[1] We and our members have long supported consumers' ability to exercise meaningful privacy rights and the implementation of workable compliance frameworks to honor those rights. We thank the Division for its work in drafting the proposed rules and provide the following comment to identify areas where additional clarity and operational adjustments would improve the proposal. We respectfully request that the Division implement the revisions suggested in this comment to better protect the rights of consumers and to ensure that businesses can continue to thrive in New Jersey.

The proposed rules include certain provisions that would impose operational complexity on businesses and would also likely run counter to consumers' expectations and choices related to personal data about them. In addition, the proposed rules contain certain inconsistencies with the text of the NJDPA and the prevailing privacy approaches of other states. We ask the Division to focus its efforts on harmonizing the proposed regulations with the approaches taken by the majority of other states. Doing so would promote interoperable compliance frameworks, reduce compliance costs for organizations, and help ensure uniformity in consumer privacy protections. Divergent state privacy laws have staggering compliance costs. In 2019, California's own regulatory impact assessment concluded that initial compliance costs to California firms alone would be $55 billion, while a study in 2022 estimated that out-of-state businesses would experience compliance costs exceeding $1 trillion over a 10-year period.[2] These costs are often considered to apply to a handful of large technology companies, by the reality is small businesses shoulder a significant portion of

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[1] *See Proposed New Rules*: N.J.A.C. 13:45L, 57 N.J. Reg. 1101(a) (June 2, 2025), *available* here.

[2] *See* State of Cal. Dep't of Justice, Office of the Attorney General, *Standardized Regulatory Impact Assessment: California Consumer Privacy Act of 2018 Regulations*, 11 (Aug. 2019), https://dof.ca.gov/wp-content/uploads/sites/352/Forecasting/Economics/Documents/CCPA_Regulations-SRIA-DOF.pdf; Daniel Castro et al., *The Looming Cost of a Patchwork of State Privacy Laws*, INFO. TECH. & INNOVATION FOUNDATION (Jan. 24, 2022), https://itif.org/publications/2022/01/24/looming-cost-patchwork-state-privacy-laws (finding that small businesses would bear approximately $20–23 billion of the out-of-state cost burden associated with state privacy law compliance annually).

the cost burden.[3] We therefore urge the Division to revise the proposed rules as detailed below to mitigate these concerns.

In this comment, we express concerns specifically on the following aspects of the proposed regulations: (1) the requirement to provide notice at or before the point of personal data collection; (2) unreasonable limits on use of data to train artificial intelligence; (3) requirements on loyalty programs that would chill the offering of such programs to New Jersey consumers; (4) deletion right effectuation requirements that appear inconsistent with legally required consumer verification; (5) the overbroad definition of "data broker"; (6) the lack of clarity in the requirement to notify third parties of consumer opt-out requests; and (7) the proposed requirement for controllers to disclose the names of all of their third-party partners in consent requests to consumers. As detailed below, we urge the Division to revise the proposed rules to promote regulatory harmonization, support practical implementation, and maintain fidelity to the statutory text of the NJDPA, all while promoting consumer choice over personal data. We thank you for the opportunity to participate in this important regulatory process.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of responsible companies across the country that make up and support the digital economy. These companies range from small businesses to household brands, advertising agencies, publishers, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet and the digital economy, which accounted for 18 percent of total U.S. gross domestic product ("GDP") in 2024.[4] By one estimate, nearly 346,000 jobs in New Jersey are related to the ad-subsidized Internet.[5] Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the Division further on the non-exhaustive list of issues we discuss in this comment.

I. The Proposed Requirement to Provide Notices at or Before the Point of Personal Data Collection Is Incompatible With the Modern Economy.

The proposed regulations would prohibit personal data collection unless a controller provides a privacy notice that is "readily available where consumers will encounter it at or before the point of collection of any personal data."[6] The proposed regulations would also require other notices "at or before the point of collection."[7] These proposed rules raise significant implementation concerns for third parties that do not maintain a direct touchpoint or interface with consumers as well as for local businesses interacting with consumers in their stores. For example, under this proposed rule, a bakery in a local grocery store receiving a telephone order for a birthday cake would need to provide a notice to the consumer containing specific information before

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[3] Digital Advertising Alliance, Summit Snapshot: Small Business Perspectives on Digital Advertising, Privacy Regulations, and Community Impact (Oct. 29, 2024), located here.
[4] John Deighton and Leora Kornfeld, *Measuring the Digital Economy*, INTERACTIVE ADVERTISING BUREAU, 8 (Apr. 2025), https://www.iab.com/wp-content/uploads/2025/04/Measuring-the-Digital-Economy_April_29.pdf.
[5] *Id.* at 138.
[6] N.J.A.C. 13:45L-2.1(d), (e) (proposed).
[7] N.J.A.C. 13:45L-2.4(b), 6.1(b), 6.2(a), 6.2(b) (proposed).

obtaining the person's contact information or the name to write on the cake. Given the context of the interaction, the only feasible way to provide such a notice would be orally, which would significantly frustrate the consumer's interaction with the baker and potentially deter them from placing their order. The notice "at or before" personal data collection obligation would consequently result in severe friction in businesses' everyday interactions with customers.

Additionally, in the modern digital economy, virtually all businesses rely on third-party partners to conduct analytics, facilitate marketing and advertising to reach existing and new consumers efficiently and at scale, and for vital fraud prevention services to help protect their customers and their assets. These third parties typically operate through integrations with first-party businesses or collect information from sources other than directly from the consumer, and as such they have no independent channel through which to provide direct notice "at or before the point" of personal data collection. This means that these third parties would not have any method of complying with the proposed requirement and would be effectively prohibited from providing their services to businesses. The proposed regulations should be drafted to be functional in practice, taking into view the commercial realities of the regulated entities.

Accordingly, we ask the Division to update the proposed regulations to clarify that in cases where personal data is collected online through another entity's digital property, third parties may satisfy the notice at collection requirements by including required disclosures in their own privacy notices or by relying on the disclosures made in first parties' privacy notices. For all other personal data collection by a third party, such entities should be permitted to provide notice via their own privacy policies. Alternatively, we suggest the Division strike the notice at or before collection requirements from the proposed regulations. This revision would ensure that controllers can comply with New Jersey's obligations in a manner that is operationally tenable for both first and third parties.

II. The Proposed Regulations Should Not Require Consent for the Use of Personal Data to Train Artificial Intelligence.

The proposed regulations would require affirmative consent for use of personal data to train artificial intelligence ("AI").[8] This proposal lacks statutory basis and clarity in practical implementation and should be struck from the proposed regulations for three reasons. First, the NJDPA makes no mention of artificial intelligence nor authorizes the New Jersey Department of Consumer Affairs to regulate the topic. Second, the proposed regulations fail to define "artificial intelligence," thereby creating significant confusion about the scope of the consent obligation and to who it would apply. Third, no other state comprehensive privacy law has adopted this proposed consent requirement, which would leave businesses without any companion approaches in other states to look to for guidance and/or establish an interoperable compliance framework.

If the proposed regulation is enacted, businesses would be left to interpret a regulation that is ambiguous and undefined for a still nascent topic that could have sweeping implications for consumers and the data-driven economy. Ambiguity in law leads to implementation challenges and

[8] N.J.A.C. 13:45L-1.3(d)(1)(ii) (proposed).

uneven compliance, inviting significant legal risk and diminishing the availability of innovative and important AI services for New Jersey consumers. As such, imposing an AI-related consent requirement could discourage innovation across sectors seeking to responsibly develop AI technologies and leave New Jersey consumers without the potential benefits that AI-powered services may offer elsewhere in the country. For these reasons, we ask the Division to remove this requirement related to AI in its proposed privacy regulations.

III. The Proposed Requirements for Loyalty Programs Would Chill the Availability of Such Programs in New Jersey.

The proposed rules would place restrictions on how loyalty programs in New Jersey must function, requiring an assessment of loyalty program benefits against the benefits of personal data collected.[9] The proposed rules would then ban loyalty programs if they are not reasonably related to the value of consumer data and would require companies to attempt to calculate the value of consumer data.[10] Without additional clarity on this issue, these requirements would create significant complexity and onerous compliance hurdles for companies offering loyalty and rewards programs to benefit New Jersey residents. As detailed below, we ask the Division to refrain from adopting a rule that would curtail loyalty offerings popular with and beneficial to New Jersey consumers.

Consumer loyalty programs offer significant benefits to both businesses and consumers. For consumers, these programs help keep costs down by offering discounts, rewards, or exclusive deals that add value to their purchases over time. For businesses, loyalty programs are a powerful tool to build and maintain brand loyalty, encouraging repeat purchases and long-term customer engagement. They also provide valuable data on consumer behavior, allowing for more targeted marketing and tailored customer service. Ultimately, loyalty programs foster a mutually beneficial relationship. Customers feel appreciated and rewarded, while businesses enjoy increased retention, enhanced brand reputation, and a more predictable revenue stream.

According to the proposed rules, "if a controller is unable to calculate a good-faith estimate of the value of a consumer's personal data that forms the basis for offering a loyalty program benefit, or cannot show that the loyalty program benefit is reasonably related to the value of the consumer's personal data, the controller shall not offer the loyalty program benefit."[11] Despite issuing this mandate, the proposed rules do not provide any information regarding how a business may justify that a price or service difference is "reasonably" related to the value of a consumer's data. For example, how does one "calculate a good-faith estimate" of the nontangible value in terms of fostering consumer loyalty and goodwill? How would such value be calculated for programs that involve multiple overlapping benefits? While one may point to, as guidance, California's attempt to provide a list of factors to consider during such a computation,[12] the fact that California had to list as many as eight factors to consider, none of which by themselves is dispositive, only further demonstrates the obfuscatory and unwieldy nature of the proposed

[9] N.J.A.C. 13:45L-2.5(d), (e) (proposed).
[10] N.J.A.C. 13:45L-2.5(b)(3) (proposed).
[11] N.J.A.C. 13:45L-2.5(d) (proposed).
[12] *See* Cal. Code Regs., tit. 11, §§ 7081(a)(1)–(8).

mandate. Additionally, Colorado, which has a comparable statutory provision on loyalty programs to the NJDPA, has not issued a regulation requiring reasonable relation of the loyalty program to the ambiguous "value of a consumer's personal data," such as the one proposed here.[13] The Division should not require a valuation exercise that is operationally unworkable, conceptually unclear, potentially open to subjectivity from enforcers, and would deter businesses from offering loyalty programs that New Jersey residents greatly enjoy for rewards and discounts.

Moreover, the requirement to disclose the value of "a consumer's data," alongside the method of calculating such value, would engender consumer confusion and have anticompetitive effects.[14] As industries lack a standardized method to calculate such valuations across the board, consumers would be overwhelmed and confused about the different calculations various businesses may disclose when offering loyalty programs. Additionally, public disclosure of those internal assessments of consumer data valuations could expose sensitive proprietary information and pose risks to businesses' competitive position in the market. Therefore, we respectfully urge the Division to remove these provisions that would burden New Jersey consumers' access to loyalty programs and negatively impact businesses' competitive standing and confidentiality.

IV. The Proposed Requirements for Deletion Mechanisms and Requests Pose Implementation Challenges and May Hinder Consumer Choice.

The proposed regulations would: (a) provide controllers an option to offer a deletion mechanism that "immediately" effectuates deletion, (b) require controllers to delete personal data when a consumer exercises an opt-out right, and (c) require controllers to notify all third parties of a consumer deletion request. As explained below, these requirements are misaligned with the NJDPA's statutory specifications and create practical challenges. First, a deletion mechanism that "immediately" effectuates deletion is challenging to square with NJDPA's verification requirement for requests that are not opt-out requests. Then, the proposed regulations misunderstand consumer intent, effectively turning a targeted request for a particular entity to delete data into a sweeping imposition across the digital ecosystem. These proposed requirements should be removed to maintain statutory integrity, support consumer expectations, and ensure regulatory workability.

a. The Proposed Regulations Option for "Immediate" Effectuation of Personal Data Deletion Would Be Difficult to Implement Alongside New Jersey's Consumer Verification Requirement.

The proposed regulations would provide an option for entities that maintain a website, mobile application, or other digital presence to include a link or a button that consumers can click

[13] *See* Colo. Rev. Stat. § 6-1-1308(1)(d) ("Nothing in this part 13 shall be construed to require a controller to provide a product or service that requires the personal data of a consumer that the controller does not collect or maintain or to prohibit a controller from offering a different price, rate, level, quality, or selection of goods or services to a consumer, including offering goods or services for no fee, if the offer is related to a consumer's voluntary participation in a bona fide loyalty, rewards, premium features, discount, or club card program."); N.J. Rev. Stat. § C.56:8-166.8 ("The provisions of this section shall not prohibit the controller's ability to offer consumers discounts, loyalty programs, or other incentives for the sale of the consumer's personal data, or to provide different services to consumers that are reasonably related to the value of the relevant data . . .").
[14] *See* N.J.A.C. 13:45L-2.5(e)(2) (proposed).

that "immediately" effectuates a deletion request.[15] This option is inconsistent with the NJDPA, as well as all other state privacy laws, which require that deletion requests must be authenticated or verified.[16] As drafted, the "immediate" deletion button would be challenging for companies to implement alongside verification requirements they must honor for such requests. Unanimously under state privacy laws, deletion requests must be verifiable requests. Legislatures, including the New Jersey legislature, have recognized that a request to delete should be honored only after ensuring that the request is valid and attributable to the correct individual, which necessarily entails verification or authentication of the request. However, with the proposed single-click deletion mechanism, controllers would not be able to reasonably verify or authenticate a consumer, as they would not have the opportunity to obtain verifying information or confirm that a deletion request was actually initiated by the consumer. Implementing such a mechanism would create challenges for businesses and introduce significant risk of unauthorized or erroneous data deletion. Accordingly, the option to include a button to facilitate "immediate" data deletion should be removed from the proposed regulations.

b. The Proposed Regulations Should Clarify Personal Data Deletion Requirements When Businesses Honor Opt-Out Requests.

The proposed regulations state: "When a consumer exercises the right to opt out, a controller shall… cease processing the consumer's personal data for the opt-out purpose, or purposes, as soon as possible, but no later than 15 days from the date the controller receive the request, *and delete any of the consumer's personal data processed for the opt-out purpose, or purposes, after the consumer exercised the right to opt out*."[17] The Division should clarify that these personal data deletion requirements apply only to data the business processes solely for a targeted advertising, sales, or profiling purpose and not to personal data maintained about the consumer that may be processed for other or additional purposes.

The New Jersey legislature intentionally created separate personal data deletion and opt-out rights. Requiring businesses to delete data when a consumer exercised an opt out right conflicts with the statutory approach to different rights under NJDPA and would be out-of-step with consumer expectations. For example, just because a consumer wishes to opt out of targeted advertising by a particular retailer controller does not necessarily mean they wish to have personal data associated with them deleted from the retailer's systems. Many businesses may use a single database for multiple functions. For example, CRM databases may be used for targeted advertising purposes as well as first-party and other direct-to-customer communication purposes. If data in such CRM databases must be deleted after a consumer requests to opt out of targeted advertising, such deletion could impact the consumer's account with the controller, eliminate points they have accumulated with the controller through past purchases, and/or have other negative impacts the consumer did not intend or expect by requesting to opt out of targeted advertising. Furthermore, it may delete the ability to persist the opt out request.

[15] N.J.A.C. 13:45L-3.1(b)(1)(ii) (proposed).
[16] *See* N.J. Rev. Stat. § C.56:8-166.7(e).
[17] N.J.A.C. 13:45L-3.4(a)(2) (emphasis added) (proposed).

For example, under the proposed regulations, a consumer's decision to opt out of targeted advertising by a popular grocery store in New Jersey may automatically trigger the deletion of their account, including any earned rewards, points, and discounts of that consumer's favorite weekly products, despite no explicit request to do so. Not only would no reasonable consumer expect that opting out of digital advertising would mean forgoing their months or years of accumulated savings, but also the power of consumer choice to tailor how a company processes data to bring them benefits would be wholly eliminated. As such, the proposed rules should be clarified to state that the controller must delete any of the consumer's personal data processed *solely* for *targeted advertising, sales, or profiling* after the consumer exercises the right to opt out of such activities.

c. The Proposed Requirement to Notify Third Parties of Consumer Deletion Requests Is Ambiguous, Challenging to Implement, and Likely Contradicts Consumers' Intent in Choosing to Send a Deletion Request to a Specific Controller.

The proposed regulations would require a controller that receives a deletion request to notify all third parties, to whom the controller sold or shared personal data associated with the consumer, of "the need to delete the consumer's personal data."[18] This requirement is ambiguous and poses implementation challenges, as it is not clear what a downstream third-party company is supposed to do once notified of a deletion request by a controller. Controllers are also likely to encounter significant operational challenges in identifying which third party partners actually received personal data pertaining to the specific consumer who exercised a deletion request with the controller. Moreover, the requirement also may undermine consumer choice, one of the touchstones of NJDPA,[19] by eliminating consumers' ability to make choices that are effective only against *certain, specific* controllers while still enjoying the benefits of data use by other companies. Just because a consumer submits a data deletion request to one controller does not mean the consumer wishes to have *every controller* or business in the marketplace delete data associated with the consumer. Consumers make personal data deletion requests to specific controllers for specific, personalized reasons. The proposed regulations should not require controllers to understand these deletion requests as requests to delete data throughout the entire Internet ecosystem. The Division should accordingly remove this proposed requirement to maintain the NJDPA's respect for consumers' autonomy and control over their relationship with businesses.

V. The Proposed Definition of Data Broker Is Overly Broad and Proposed Limitations on Businesses' Engagement with Data Brokers Are Overly Restrictive.

The proposed definition of "data broker" would include any entity that "*collects, purchases, or sells*" personal data of a consumer with whom the entity does not have a direct relationship.[20] This definition is overly broad and ambiguous. As drafted, it would capture virtually all entities in

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[18] N.J.A.C. 13:45L-3.7(a)(3) (proposed).
[19] New Jersey Governor Phil Murphy, when signing the NJDPA into law, said that "[t]his important legislation will help consumers reclaim control over their own personal data, and allow them the choice to share information that is personal to them." Press Release, State of N.J. Governor Phil Murphy, Governor Murphy Signs Legislation Protecting Consumer Data (Jan. 16, 2024), https://www.nj.gov/governor/news/news/562024/20240116k.shtml.
[20] N.J.A.C. 13:45L-1.2 "Data broker" (proposed) (emphasis added).

the marketplace who collect data from third-party sources to prospect or reach new customers such as a new business without any existing customers. This definition could include, for example, entities that range from universities and grocery stores to local tailors and laundromats that put up ads on social media, use third-party analytics tools on their websites, and/or even merely collect personal data about consumers they hope to connect with and gain as new customers. Accordingly, this unduly expansive scope of "data broker" would unnecessarily capture businesses of all sizes, including businesses that directly interface with consumers. This overbreadth is especially concerning given that the New Jersey legislature has not enacted a law related to data brokers. In all other states with data broker laws, the legislature, rather than an agency, has defined the contours of what a "data broker" is through a statutory definition.[21]

The proposed regulations include ambiguous requirements for the ways in which controllers may engage with and leverage data broker services. These requirements are likely to create compliance challenges for many kinds of companies due to the broad proposed definition of "data broker." The proposed rules, for example, state that a controller that provides a location-based service, such as a mobile application that finds gas prices near the consumer's location, shall not require the consumer to consent to "incompatible uses" (such as, for example, the sale of geolocation data to data brokers) "together with a reasonably necessary and proportionate use of geolocation data for providing the location-based service."[22] This example creates confusion regarding the kinds of consent companies must obtain to provide a location-based service. In many cases, the transfer of geolocation data to a data broker is an *imperative element* in providing a requested location-based service, including for security and fraud prevention purposes. Moreover, it is not clear if a single consent may be surfaced to a consumer to enable geolocation data transfers to data brokers, or if different consents must be obtained for each data broker use of geolocation data. Given the ambiguity in this example, we ask the Division to strike it from the proposed regulations.

Moreover, the Division's proposed definition of "data broker" would create consumer confusion for two reasons. First, the definition is incongruous with most other state laws that define data broker as an entity that *sells* personal data about a consumer with whom it does not have a direct relationship.[23] Enacting the proposed definition, which also includes data purchasing and collection, would only muddle for consumers what and who is a data broker. Second, consumers already have visibility into the practices of first-party businesses who collect and purchase personal data. For these first parties, data collection from sources other than the consumer is already described in applicable privacy notices. Additionally, consumers can exercise their privacy rights directly with first-party businesses that collect and purchase personal data about them by submitting a consumer rights request to them directly. We therefore ask the Division to update the proposed

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[21] *See, e.g.*, Cal. Civ. Code § 1798.99.80(c) ("'Data broker' means a business that knowingly collects and sells to third parties the personal information of a consumer with whom the business does not have a direct relationship."); Or. Rev. Stat. § 646A.592(c)(A) ("'Data broker' means a business entity or part of a business entity that collects and sells or licenses brokered personal data to another person."); Vt. Stat. § 2430(4)(A) ("'Data broker' means a business, or unit or units of a business, separately or together, that knowingly collects and sells or licenses to third parties the brokered personal information of a consumer with whom the business does not have a direct relationship.").
[22] N.J.A.C. 13:45L-1.5(a)(4)(ii).
[23] *See id.*

data broker definition to remove collection and processing so that it includes only those entities that *sell* the personal data of a consumer with whom they do not have a direct relationship.

VI. The Proposed Requirement to Notify Third Parties of Consumer Opt-Out Requests Should Be Clarified.

The proposed regulations require controllers to notify all third parties, to whom the controller has sold or shared information, of a consumer's choice to opt out "and forward the request to any other person to whom the third party has made the personal data available *during that time period*."[24] To foster harmony across states and to align the text of the proposed regulations with the statutory intent of NJDPA, this requirement should be clarified.[25] The intent of the proposed provision appears to track California's rule requiring controllers to notify third parties of an opt-out request if the business sold or shared personal data "*after* the consumer submits the request to opt[]out of sale/sharing and *before* the business complies with that request,"[26] as suggested by the proposed phrase "during that time period."[27] However, New Jersey's proposal introduces confusion by failing to define or specify any actual "time period" to which its language refers. More specifically, this language introduces ambiguity as to whether the obligation applies to data transfers that occurred before the consumer exercised their opt-out right.[28] This lack of specificity could lead to overbroad application of opt-out rights, contrary to consumer intent, and impose retroactive compliance obligations on businesses that exceed the statutory mandate of the NJDPA. To avoid this outcome and preserve the integrity of the opt-out right envisioned by the New Jersey legislature, the proposed requirement should be updated to clarify that the requirement applies to personal data sold or shared with third parties *after a consumer submitted a request to opt out to a controller but before the controller could functionally comply with the request*.

VII. The Proposed Regulations Should Not Require Disclosure of Third Parties' Names in Businesses' Requests to Consumers for Consent to Process Sensitive Data and Should Instead Require Disclosure of Categories of Third Parties.

The proposed regulations would require a controller to disclose the names of any third parties receiving sensitive data through a sale in a request for consumer consent to such sales.[29] This requirement would be operationally unviable as controllers change business partners frequently and companies regularly merge with others and change names. From a practical standpoint, constantly updating a list of all third-party partners of a controller would take significant resources and time away from efforts to comply with other new privacy directives in these proposed rules. Consequently, covered entities may be forced to jeopardize new business opportunities and relationships just to compile, maintain, update, and distribute these ephemeral lists.

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[24] N.J.A.C. 13:45L-3.4(a)(4) (proposed) (emphasis added).
[25] *See* Cal. Code Regs., tit. 11, § 7026(f)(2).
[26] *Id.*
[27] N.J.A.C. 13:45L-3.4(a)(4) (proposed).
[28] *Id.*
[29] N.J.A.C. 13:45L-7.3(c)(5) (proposed).

Instead, the Division's regulations should align with the overwhelming majority of state privacy frameworks by requiring disclosure of *categories* of third-party data recipients, rather than their specific identities.[30] The proposed requirement, as presently drafted, would offer negligible additional transparency value to consumers, while imposing material compliance obligations on businesses. For these reasons, we urge the Division to revise this provision to reflect a more practical and privacy-protective approach consistent with national norms.

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Thank you in advance for your consideration of this comment.

Sincerely,

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[30] *See, e.g.,* Cal. Civ. Code § 1798.110; Va. Code Ann. § 59.1-578(C); Colo. Rev. Stat. § 6-1-1301(1)(a); Utah Rev. Stat. § 16-61-302(1)(a).